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Order Dismissing Enhancement Target and Preserving Allocution Issue

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 21 Entered May 5, 2026

Before Circuit Judges Slate, Alder, and March.

The Court considers the fictional United States' April 22 threshold motion and Mateo Serrano's April 29 opposition. The government seeks dismissal only of Serrano's appellate challenge to the three-level manager-or-supervisor adjustment under U.S.S.G. § 3B1.1(b). It does not seek dismissal of the separate claim that the sentencing court completely denied Serrano a personal opportunity to allocute.

The motion is granted on the limited terms stated below. The plea agreement contains a knowing and intelligent waiver covering an ordinary Guidelines challenge to the sentence. The role-enhancement target therefore is dismissed without any determination whether Serrano managed or supervised Alina Pared.

The allocution target remains pending. The agreement expressly excludes a complete-denial claim from its general surrender, and the government's motion concedes that scope. Continued briefing shall address the Rule 32 record, plain error, prejudice, and remedy. This order neither forecasts those questions nor alters the district judgment while appellate review continues.

Validity, Invocation, and Scope

Under *United States v. Boutcher*, waiver enforcement is reviewed de novo and requires a knowing agreement, absence of government breach, and an appealed issue within the accepted scope. 998 F.3d 603, 608–09 (4th Cir. 2021). The government invoked the provision in its first substantive filing requesting disposition.

Judge Elara Venn complied with Rule 11(b)(1)(N). She addressed Serrano personally, distinguished ordinary conviction-and-sentence appeals from the special allocution reservation, and explained that preservation of the role objection below did not itself retain appellate review. Serrano confirmed that understanding in his own answers. The totality described in *Smith* supports knowing and intelligent assent. *United States v. Smith*, 134 F.4th 248, 255–61 (4th Cir. 2025).

The covered target asserts that the district court misapplied § 3B1.1(b), selected offense level 20 rather than 17, and thereby used a higher advisory range. It is a standard challenge to the application of the Guidelines and falls within the agreement's broad sentence-review language, including its reference to 18 U.S.C. § 3742.

Serrano alleges no government breach, and the record reveals none. The waiver is valid and enforceable against this target.

Limited Dismissal; Reserved Claim Continues

The enhancement target is DISMISSED. This is a threshold disposition, not a merits affirmance. The Court expresses no view on whether the protected interactions showed supervision, whether Pared acted independently, or whether the district court correctly applied the preponderance standard. Steffen identifies the person-management boundary but need not be applied to the disputed facts here. See 741 F.3d 411, 414–16 (4th Cir. 2013).

The dismissal also does not dictate a calculation at any later district-court proceeding. It establishes only that Serrano surrendered appellate adjudication of this enhancement challenge in the present appeal.

The complete-denial claim is not dismissed. Ashford recognizes that generic sentence-waiver language may reach allocution, but this agreement adds an express reservation for total omission. *United States v. Ashford*, 103 F.4th 1052, 1056–57 (4th Cir. 2024). Giving that limitation effect is consistent with enforcing the general surrender against the role target.

The Court makes no present finding about the sentencing sequence, the effect of counsel's advocacy, the absence of an objection, the possibility of a lower sentence, or the relief that would follow an established error. Those matters remain for adversarial briefing.

Further Proceedings and Certification

The clerk shall mark the appeal dismissed in part as to the § 3B1.1(b) enhancement target only. The caption and appellate docket remain open for the reserved complete-denial-of-allocation issue. Existing sealed designations continue, and public filings must use the authorized redacted counterparts rather than disclose protected presentence material.

The merits schedule shall permit the fictional United States to respond to Serrano's allocution argument and shall allow any authorized reply. The parties may address Rule 32(i)(4)(A)(ii), plain-error review, the possibility-of-a-lower-sentence standard, and the scope of any requested resentencing. They may not treat this order as a ruling on those subjects.

This target-limited disposition does not disturb the conviction or independently affirm the sentence. The appeal remains open on allocution, so this partial order is not a final appellate judgment and no mandate issues from it. The decision rests on the plea materials, Rule 11 transcript, motion papers, and authorities cited above.

By direction of Judges Slate, Alder, and March, fictional Fourth Circuit Exercise Clerk Maela Cross enters Document 21 on May 5 and serves Celia Arden and Bram Ives through the closed synthetic channel. The order contains no real personal information, filing credential, sealed factual narrative, or operational offense detail.